

Section 2.

SCHEDULE.

RULES AS TO APPLICATIONS FOR AND GIVING
OF ASSISTANCE.

1. The applicant for assistance shall furnish to the local authority full particulars of the houses and buildings concerned and of the works proposed to be executed, and a statement (approved by an officer of the local authority authorised in that behalf) of the estimated cost of the works, and, if so required by the local authority, plans and specifications thereof.

2. If the local authority approve the application they shall issue to the applicant a certificate of their approval which shall set out the terms and conditions upon which the assistance will be given.

3. On the completion of the works or in a case where assistance is to be given by way of loan, of such part of the works as the applicant considers will entitle him to payment of an instalment by the local authority, the applicant shall produce the certificate to the local authority and shall satisfy them that the works or part thereof have been executed in accordance with the terms and conditions of the certificate, and the local authority shall not be liable to make any loan or grant or any instalment until they are so satisfied.

CHAPTER 57.

An Act to amend the provisions of the Prisons (Scotland) Act, 1877, relating to the discontinuance of prisons, and the legalisation of police cells as places of detention.

[15th December 1926.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Disposal of
discontinued
prison.
40 & 41 Vict.
c. 53.

1. Where, after the passing of this Act, any prison shall be discontinued by an order made by the Secretary of State under section thirty-nine of the Prisons (Scotland) Act, 1877, the provisions of section forty of the said

Act shall not apply, and any prison so discontinued shall be sold or otherwise disposed of as the Secretary of State, with the consent of the Treasury, may direct.

2.—(1) Section thirty of the Prisons (Scotland) Act, 1877 (which relates to the legalising of police cells as places of detention), shall be amended by the substitution of the words “thirty days” for the words “fourteen days.”

Amendment
of 40 & 41
Vict. c. 53.
s. 30.

(2) For the purposes of the said section, the county council of Orkney and the county council of Zetland shall be deemed to be the police authorities of the said counties respectively (inclusive of any burghs situate therein except the burgh of Lerwick): Provided always that it shall be the duty of the Prison Commissioners for Scotland to make such arrangements as may be necessary for the removal of any prisoners confined in police cells in either of the said counties legalised under the said section.

3. This Act may be cited as the Prisons (Scotland) Act, 1926, and this Act and the Prisons (Scotland) Acts, 1860 to 1909, may be cited as the Prisons (Scotland) Acts, 1860 to 1926.

Citation.

CHAPTER 58.

An Act to increase and extend the powers of the court to inflict penal servitude in lieu of imprisonment in the case of certain crimes.

[15th December 1926.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Where a person is convicted on indictment of two or more offences to which this Act applies in respect of which he is liable to be sentenced to terms of imprisonment amounting in the aggregate to a period of not less than three years, the court may, instead of sentencing him to imprisonment, sentence him to penal

Power of
court to
substitute
penal servi-
tude for
consecutive
terms of